

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index #

CHERYL BULBACH,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, SERGEANT ROBERT
A. BRAMBLE and POLICE OFFICER "JOHN DOE",
name being fictitious as unknown to Plaintiff,

Defendants.
_____X

SUMMONS

Plaintiff designates New York
County as the place of trial

The basis of venue is:
Plaintiff's Residence

Plaintiff resides at:
County of New York

To the above-named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: NEW YORK, NEW YORK
September 15, 2023

Defendant's address:

THE CITY OF NEW YORK
Municipal Building, New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
One Police Plaza, New York, New York 10038

SERGEANT ROBERT A. BRAMBLE
69th Precinct Detective Squad
9720 Foster Ave, Brooklyn, NY 11236

Plaintiff's attorneys:

ARNOLD E. DIJOSEPH, P.C.



Arnold E. DiJoseph, III
50 Broadway -Suite 1000
New York, New York 10004
212-344-7000

NOTICE: THE NATURE OF THIS ACTION IS AS FOLLOWS: Personal Injury, Violation of Civil Rights, Excessive Force, Assault and Battery.

THE RELIEF SOUGHT IS AS FOLLOWS: Monetary Damages.

UPON YOUR FAILURE TO APPEAR: Judgment will be taken against you by default for the sum of an amount beyond the jurisdictional limits of all lower courts, with interest from October 31, 2022, and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
CHERYL BULBACH,

Plaintiff,

VERIFIED COMPLAINT

Index No.:

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, SERGEANT ROBERT
A. BRAMBLE and POLICE OFFICER "JOHN DOE",
name being fictitious as unknown to Plaintiff

Defendants.

-----X

Plaintiff, by her attorneys, ARNOLD E. DIJOSEPH, P.C., upon information and
belief, and at all times hereinafter mentioned, alleges:

FIRST CAUSE OF ACTION

1. Plaintiff, CHERYL BULBACH, was, and still is a resident of the City of New
York and State of New York.

2. That at all times hereinafter mentioned the defendant, THE CITY OF NEW
YORK, was, and still is, a municipal corporation duly authorized and existing under and
by virtue of the laws of the State of New York.

3. That the plaintiff caused a Notice of Claim and intention to sue to be
served upon the Office of the Corporation of THE CITY OF NEW YORK within ninety (90)
days of the date of the occurrence herein.

4. That more than thirty (30) days have elapsed since the presentation of said notice of claim and that said claim remains unadjusted and that the defendant has wholly refused, failed and neglected to make any adjustment of same.

5. That an oral examination of the plaintiff, CHERYL BULBACH, was conducted by the defendant, THE CITY OF NEW YORK on May 18, 2023.

6. That this action is commenced within the time prescribed by statute for the commencement of lawsuits.

7. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, maintained a Police Department as a unit and agency of the city government of said City of New York, having the duty to protect life and property, prevent crime, preserve the public peace and enforce all the laws, ordinances and provisions of the Administrative Code over which the Police Department has jurisdiction.

8. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments failed to adequately and properly test and/or screen applicants for the position of police officers.

9. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments failed to adequately and properly train applicants for the position of police officers.

10. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly hired applicants for the position of police officers.

11. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly trained applicants for the position of police officers.

12. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly supervised the activities of their police officers.

13. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly controlled the activities of their police officers.

14. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly managed the activities of their police officers.

15. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly maintained the activities of their police officers.

16. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly inspected the activities of their police officers.

17. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers to act in an illegal manner.

18. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers to act in an unprofessional manner.

19. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers to act in a negligent and/or deliberate manner in carrying out their official duties and/or responsibilities.

20. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments failed to take proper action in suspending and/or reprimanding their police officers.

21. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly continued to retain in their employment police officers clearly unfit to be police officers.

22. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, was negligent, careless and reckless in allowing their police officers to use excessive force.

23. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, employed and had under its control, police officers, whose duty it was to patrol the premises, protect the property of the inhabitants and properly enforce the rules and regulations of the neighborhood located at 6th Avenue between 14th and 15th Street in the City of New York and State of New York.

24. That at all times hereinafter mentioned the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and still is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

25. That the plaintiff caused a Notice of Claim and intention to sue to be served upon the Office of the Corporation of THE NEW YORK CITY POLICE DEPARTMENT and that said notice was served within ninety (90) days of the date of the occurrence herein.

26. That more than thirty (30) days have elapsed since the presentation of said notice of claim and that said claim remains unadjusted and that the defendant has wholly refused, failed and neglected to make any adjustment of same.

27. That no oral examination of the plaintiff, CHERYL BULBACH, was requested by the defendant, THE NEW YORK CITY POLICE DEPARTMENT.

28. That this action is commenced within the time prescribed by statute for the commencement of lawsuits.

29. That at all times hereinafter mentioned, the defendant, THE NEW YORK CITY POLICE DEPARTMENT, maintained an organized Police Department as a unit and agency of the city government of said City of New York, having the duty to protect life and property, prevent crime, preserve the public peace and enforce all the laws, ordinances and provisions of the Administrative Code over which the POLICE DEPARTMENT has jurisdiction.

30. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, by its agents, servants, employees, agencies and/or departments failed to adequately and properly test and/or screen applicants for the position of police officers.

31. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, by its agents, servants, employees, agencies and/or departments failed to adequately and properly train applicants for the position of police officers.

32. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly hired applicants for the position of police officers.

33. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly trained applicants for the position of police officers.

34. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly supervised the activities of their police officers.

35. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly controlled the activities of their police officers.

36. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly managed the activities of their police officers.

37. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly maintained the activities of their police officers.

38. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly inspected the activities of their police officers.

39. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers to act in an illegal manner.

40. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers to act in an unprofessional manner.

41. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers to act in a negligent and/or deliberate manner in carrying out their official duties and/or responsibilities.

42. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, by its agents, servants, employees, agencies and/or departments failed to take proper action in suspending and/or reprimanding their police officers.

43. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly continued to retain in their employment police officers clearly unfit to be police officers.

44. That at all times hereinafter mentioned, defendant, THE NEW YORK CITY POLICE DEPARTMENT, was negligent, careless and reckless in allowing their police officers to use excessive force.

45. That at all times hereinafter mentioned, defendant, THE NEW YORK CITY POLICE DEPARTMENT, employed and had under its control, police officers, whose duty it was to patrol the premises, protect the property of the inhabitants and properly

enforce the rules and regulations of the neighborhood located at 6th Avenue between 14th and 15th Street in the City of New York and State of New York.

46. That at all times hereinafter mentioned, Defendant SERGEANT ROBERT A. BRAMBLE, was and still is a resident of the State of New York.

47. That at all times hereinafter mentioned, Defendant SERGEANT ROBERT A. BRAMBLE, was employed by defendant, THE CITY OF NEW YORK, as a Detective under shield number 1113, and was acting within the scope of his employment.

48. That at all times hereinafter mentioned, Defendant SERGEANT ROBERT A. BRAMBLE, was employed by defendant, THE NEW YORK CITY POLICE DEPARTMENT, as a Detective under shield number 1113 and was acting within the scope of his employment.

49. That on or about October 31, 2022, Defendant SERGEANT ROBERT A. BRAMBLE, while acting within the scope of his employment with THE CITY OF NEW YORK was posted on the west side sidewalk located at 6th Avenue between 14th and 15th Street in the City of New York and State of New York.

50. That on or about October 31, 2022, Defendant SERGEANT ROBERT A. BRAMBLE, while acting within the scope of his employment with THE NEW YORK CITY POLICE DEPARTMENT, was posted on the west side sidewalk located at 6th Avenue between 14th and 15th Street in the City of New York and State of New York.

51. That at all times hereinafter mentioned, Defendant POLICE OFFICER “JOHN DOE”, was and still is a resident of the State of New York.

52. That at all times hereinafter mentioned, Defendant POLICE OFFICER “JOHN DOE”, was employed by defendant, THE CITY OF NEW YORK, as a Police Officer, and was acting within the scope of his employment.

53. That at all times hereinafter mentioned, Defendant POLICE OFFICER “JOHN DOE”, was employed by defendant, THE NEW YORK CITY POLICE DEPARTMENT, as a Police Officer and was acting within the scope of his employment.

54. That on or about October 31, 2022, Defendant POLICE OFFICER “JOHN DOE”, while acting within the scope of his employment with THE CITY OF NEW YORK was posted on the west side sidewalk located at 6th Avenue between 14th and 15th Street in the City of New York and State of New York.

55. That on or about October 31, 2022, Defendant POLICE OFFICER “JOHN DOE”, while acting within the scope of his employment with THE NEW YORK CITY POLICE DEPARTMENT, was posted on the west side sidewalk located at 6th Avenue between 14th and 15th Street in the City of New York and State of New York.

56. That on or about October 31, 2022, plaintiff, CHERYL BULBACH, was legally a pedestrian walking on the west side sidewalk located at 6th Avenue between 14th and 15th Street in the City of New York and State of New York.

57. That on or about October 31, 2022, plaintiff, CHERYL BULBACH, was unlawfully and illegally restrained, detained and battered without reasonable or probable cause and with the use of unreasonable, unnecessary, unwarranted and excessive force, at 6th Avenue between 14th and 15th Street in the City of New York and State of New York and was caused to sustain serious and severe permanent personal injuries.

58. That said assault and battery deprived the plaintiff of her personal freedom and her civil rights.

59. The plaintiff, CHERYL BULBACH, has been damaged and injured in her good name and reputation, caused to suffer great humiliation, pain and anguish of mind, and has been injured in her health, profession and business.

60. The aforesaid occurrence and resulting injuries to plaintiff was due to the carelessness, recklessness and negligence of the defendants herein.

61. The aforesaid occurrence and resulting injuries to plaintiff was due solely to the carelessness, recklessness and negligence of the defendants herein.

62. Said occurrence and resulting injuries to plaintiff was due without any fault or wrongdoing on the part of the plaintiff contributing thereto.

63. This action falls within one or more of the exceptions set forth in CPLR 1602(1b, 2, 11).

64. That by reason of the aforesaid, plaintiff, CHERYL BULBACH, has been damaged in an amount beyond the jurisdictional limits of all lower courts.

SECOND CAUSE OF ACTION

65. Plaintiff repeats, reiterates and realleges each and every allegation contained hereinabove inclusive with the same force and effect as if hereinafter set forth at length.

66. That on or about October 31, 2022, the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, SERGEANT ROBERT A. BRAMBLE and POLICE OFFICER "JOHN DOE", by their agents, servants, employees, agencies and/or departments were acting in a careless, negligent and illegal manner.

67. That at all times herein mentioned, the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, SERGEANT ROBERT A. BRAMBLE and POLICE OFFICER "JOHN DOE", by its agents, servants, employees, agencies and/or departments did unlawfully and illegally restrain, detain and batter the plaintiff, CHERYL BULBACH.

68. That at all times herein mentioned, the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, SERGEANT ROBERT A. BRAMBLE and POLICE OFFICER "JOHN DOE", by its agents, servants, employees, agencies and/or departments did unlawfully and illegally use excessive force against plaintiff, CHERYL BULBACH.

69. The aforesaid occurrence and resulting injuries to plaintiff, CHERYL BULBACH, occurred without any fault or wrongdoing on the part of the plaintiff, CHERYL BULBACH, contributing thereto.

70. The aforesaid occurrence and resulting injuries to plaintiff, CHERYL BULBACH, were due to the intentional, willful and wanton conduct of defendants.

71. The aforesaid occurrence and resulting injuries to plaintiff, CHERYL BULBACH, were due to the conduct of the defendants, which reflects an utter indifference to the safety of others and specifically the safety of plaintiff, CHERYL BULBACH.

72. The aforesaid occurrence and resulting injuries to plaintiff, CHERYL BULBACH, were due to the conduct of defendants, which reflects a conscious disregard for the safety of others and specifically the safety of plaintiff, CHERYL BULBACH.

73. That the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, SERGEANT ROBERT A. BRAMBLE and POLICE OFFICER "JOHN DOE", by their agents, servants, employees, agencies and/or departments did intentionally inflict emotional distress, mental harm, harm to her reputation, embarrassment and ridicule to the plaintiff, as a result of their careless, reckless, malicious, negligent and intentional acts.

74. The conduct of defendants exhibited a reckless disregard for human life and safety and more particularly for the life and safety of plaintiff.

75. That by reason of the foregoing, plaintiff, CHERYL BULBACH, has been damaged, through no fault of her own, in an amount beyond the jurisdictional limits of all lower courts.

THIRD CAUSE OF ACTION

76. Plaintiff repeats, reiterates and realleges each and every allegation contained hereinabove inclusive with the same force and effect as if hereinafter set forth at length.

77. That the aforesaid acts of the defendants, their agents, servants, employees, agencies and/or departments violated claimant's civil rights under Federal Law Section 1983 of Title 42.

78. By reason thereof plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts.

WHEREFORE, plaintiff CHERYL BULBACH demands judgment against the Defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, SERGEANT ROBERT A. BRAMBLE and POLICE OFFICER "JOHN DOE" herein on all the above causes of action, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
September 15, 2023

Yours, etc.

ARNOLD E. DiJOSEPH, P.C.
Attorneys for Plaintiff
CHERYL BULBACH
50 Broadway -Suite 1000
New York, New York 10004
718-984-8902

VERIFICATION

STATE OF NEW YORK)
) SS:
COUNTY OF NEW YORK)

I, CHERYL BULBACH, being duly sworn, depose and say:

I am a Plaintiff in the within action. I have read the foregoing COMPLAINT and know the contents thereof. The same is true to my own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe to be true.

X Cheryl Bulbach
CHERYL BULBACH

Sworn to before me on
September 8, 2023


Notary Public

BRENDA COLON
Notary Public, State of New York
Reg. No. 01CO6010251
Qualified in Kings County
Commission Expires July 13, 2024

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

CHERYL BULBACH,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, SERGEANT ROBERT
A. BRAMBLE and POLICE OFFICER "JOHN DOE",
name being fictitious as unknown to Plaintiff,

Defendants.

SUMMONS and VERIFIED COMPLAINT

ARNOLD E. DiJOSEPH, P.C.
Attorneys for Plaintiffs
50 Broadway -Suite 1000
New York, New York 10004
212-344-7000
